

Alleging the same cause of action does not make the issues identical, even if some parties overlap. Additionally, the plaintiffs in both cases have alleged factually different and distinct causes of action beyond that of defamation. Consolidating such distinct factual inquiries and legal theories into a single case would tend to greatly increase the complexity of the case risking confusion of the trier of fact, all of which could result in substantial prejudice to all parties. The evidence at trial could easily become quite confusing to a juror as the law and legal theories will be different and involve only some of the same parties and/or facts.

For these reasons, the Court concludes the commonality of some alleged facts yet lack of commonality of legal issues is fatal to Plaintiffs' position consolidation would, overall, be beneficial to either the Court or the parties.

Accordingly, the Court finds any benefit stemming from consolidation would be slight, and any such benefit is far outweighed by the burdens of potential injustice and/or prejudice to some or all of the parties. The Court further finds judicial economy would not be served by consolidation.

Accordingly, the motion to consolidate is DENIED.

**8. CU0002513 TRUCKEE CROSSROADS S.C., LP, a Delaware limited partnership
vs. SIERRA CREST CORPORATION, a Nevada corporation et al**

Appearances required by Defendants, Sierra Crest Corporation dba Blue Zone Sports and Ski James Broman, to show cause as to why Defendants' Answer or, at a minimum, the "Counterclaim" portion of Defendants' Answer should not be STRICKEN for failure to adhere to CCP sections 428.40 and 428.80. More specifically, although using the term "counterclaim" for a cross-complaint does not affect its validity (see, CCP section 428.80), any cross-complaint is to be filed as a separate document and shall not be contained within an answer. See, CCP 428.40. (Defendants should also take note of CCP section 428.50.)

9. CU0002527 Jerome Nocerino vs. Airbnb, Inc. et al

No appearance required. In light of the filed proofs of service, the OSC re dismissal is hereby vacated.

**10. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District dba Tahoe
Forest Hospital D/P SNF et al**

No appearance required. On the Court's own motion and in light of the declaration of counsel for Plaintiffs, the OSC re Dismissal is continued to August 21, 2026 at 9:00 a.m. in Department A.

11. CU0002549 PATRICK J. ROMANO vs. AUSTIN SHI-PING WANG

No appearance required. In light of the filed proofs of service, the OSC re dismissal is hereby vacated. However, the proof of service on file fails to indicate notice of the case management